

FIRST ENDORSEMENT

Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, May 9, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2024-30056 against Sergeant Carlos Barahona, Tax Registry No. 938023. The case was conferenced on April 30, 2024, before Assistant Deputy Commissioner of Trials Jeff S. Adler, who suggested a penalty of a total forfeiture of five (5) vacation days instead of the negotiated ten (10) vacation days. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board

DISAPPROVED

JUN 26 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2024-30056
BOOK & PAGE NO. Page <u>1</u> of <u>2</u>
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, BARAHONA	FIRST CARLOS	M.I. A	COMMAND PBMN SPECIALIZED UNITS
SHIELD NO. 4019	TAX REGISTRY NO. 938023	SOCIAL SECURITY NO.		DATE APPOINTED 07/11/2005

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Sergeant Carlos Barahona, on or about October 8, 2022, at approximately 2221, while assigned to PBMN SU PST and on duty in the vicinity of Broadway and West 144th Street, New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he threatened an individual with the use of force when he said, "Alright, taser this motherfucker", without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Sergeant Carlos Barahona, on or about October 8, 2022, at approximately 2221, while assigned to PBMN SU PST and on duty, in the vicinity of Broadway and West 144th Street, New York County, was discourteous, in that he said in sum and substance to an individual, "We ain't playing games, son. This is the real world. This is real world, motherfucker. You wanna play games? This is real shit. This is the streets, homie."	DISMISSED	
3 . Sergeant Carlos Barahona, on or about October 8, 2022, at approximately 2221, while assigned to PBMN	DISMISSED	

DC Barahona 5/29/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab... 6/26/24
POLICE COMMISSIONER DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2024-30056
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, BARAHONA	FIRST CARLOS	M.I. A	COMMAND PBMN SPECIALIZED UNITS
SHIELD NO. 4019	TAX REGISTRY NO. 938023	SOCIAL SECURITY NO.	DATE APPOINTED 07/11/2005	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
SU PST and on duty, inside the 30th Precinct stationhouse, New York County, was discourteous, in that he said to § 87(2)(b), in sum and substance, "You better stop fucking moving. You better stop fucking moving. You better stop fucking moving around. You dont control this shit. We control this shit. Alright? Put around his arms because hes fucking playing games. You wanna play games, we play games son. Telling us how to fucking run our shit", without police necessity. 4 . Sergeant Carlos Barahona, on or about October 8, 2022, at approximately 2221, while assigned to PBMN SU PST and on duty, inside the 30th Precinct stationhouse, New York County, used offensive language, in that he said to § 87(2)(b) "Youre in my house, bitch", without police necessity.	DISMISSED	

DC Busse 5/29/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Caban 6/26/24
POLICE COMMISSIONER DATE



POLICE DEPARTMENT

June 18, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202300672 (Incident Date: October 8, 2022 on DADS No. 2024-30056)
involving Sergeant Carlos Barahona, Tax No. 938023

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Carlos Barahona and has determined that some of his actions do not warrant the proposed discipline.

In this matter, Sergeant Barahona used multiple profanities that served no legitimate law enforcement purpose when interacting with two different individuals that were in police custody. After reviewing the facts and circumstances of the case, the Police Commissioner finds that Sergeant Barahona's statements to the individuals were discourteous and unbecoming of a professional police officer. However, none of the statements rises to the level of offensive language based on the totality of the circumstances.

Therefore, the Police Commissioner intends to dismiss all Charges and Specifications in this matter and direct the issuance of a Schedule "B" Command Discipline with the forfeiture of five (5) penalty days for Specification Nos. 1, 2 and 3. However, with respect to Specification No. 4, the Police Commissioner intends to impose no disciplinary action.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John D'Alessandro, Esq.

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Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

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www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

June 25, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. Sergeant Carlos Barahona
Disciplinary Case No.: 2024-30056

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated June 18, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to impose a lesser penalty than what the CCRB recommended for SGT Barahona and that you also intend to retain jurisdiction and dismiss Specification Four (4). Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the recommendation of the CCRB, you determined that some of SGT Barahona’s actions do not warrant the imposition of CCRB’s proposed penalty and that you intend to issue a Command Discipline Schedule “B” and impose a lesser penalty of the forfeiture of five (5) vacation days to cover Specifications One (1), Two (2) and Three (3). Deputy Chief Marino’s letter also states that you intend to dismiss and impose no disciplinary action as to Specification Four (4). The CCRB disagrees with your recommendation.

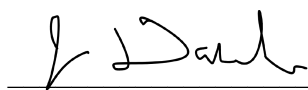
It is undisputed that SGT Barahona threatened an individual with the use of force and used discourteous and offensive language when speaking to an individual and [REDACTED] § 87(2)(b). This is not only captured on SGT Barahona’s BWC footage, but SGT Barahona also admitted to this misconduct during his CCRB interview. Specifications One (1) and Two (2) are captured on SGT Barahona’s BWC footage starting at the 01:15 mark of the video’s timestamp. While SGT Barahona is placing handcuffs on an individual, SGT Barahona says, “Alright, taser this motherfucker.” After the individual is handcuffed, at 2:20, SGT Barahona continues, “We ain’t playing games, son. This is real world. This is real world, motherfucker. You wanna play games? This is real shit. This is the streets, homie”. (202300672_20240124_1124_DMI.MP4). During his CCRB interview, SGT Barahona admitted to making this threat and using discourteous language towards the individual. He also apologized and stated that he used “a poor choice of words.” When SGT Barahona made these statements, the individual was lying face down on the ground and with his arms behind his back being handcuffed. Given these circumstances, SGT Barahona would have not been justified in deploying

his taser and thus his threat of force, by use of taser, and his use of discourteous language, violated the Patrol Guide. Specification Three (3) is also clearly captured on SGT Barahona's BWC footage. At the 06:14 time stamp, SGT Barahona tells § 87(2)(b) "You wanna play games, we can play games right now, bruh." From the 06:15 timestamp to the 06:39 timestamp, SGT Barahona continues, "You better stop fucking moving. You better stop fucking moving. You better stop fucking moving around. You don't control this shit. We control this shit. Alright? Put around his arms because he's fucking playing games. You wanna play games, we play games son... Telling us how to fucking run our shit." (202300672_20240124_1124_DMIA.MP4). SGT Barahona admitted to making these statements and stated that he used profanity to "level" with § 87(2)(b) because he was being "verbally combative" with some officers during processing. In this situation, SGT Barahona had a duty to maintain a courteous, professional, and respectful demeanor regardless of § 87(2)(b) behavior and actions. SGT Barahona is guilty of Specifications One (1), Two (2) and Three (3) and the recommended presumptive penalties should be imposed as to each Specification.

In addition, CCRB disagrees that Specification Four (4) should be dismissed because "none of the statements rise to the level of offensive language, based on the totality of the circumstances." The NYPD Disciplinary Matrix states that "Offensive language is more serious conduct than discourtesy and includes slurs based on membership in a protected class such as race, religion, ethnicity, gender, gender identity, sexual orientation, age or disability." SGT Barahona's usage of the word "bitch," when he said, "You're in my house, bitch", is, on its face, a slur based on § 87(2)(b) gender. This statement is clearly distinguishable from the others and rises to the level of an offensive statement. Hence, SGT Barahona is also guilty of Specification Four (4) and the recommended mitigated penalty of ten (10) vacation days should be imposed.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the CCRB requests that the negotiated penalty of the total forfeiture of ten (10) vacation days be imposed for all four (4) Specifications.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: John D'Alessandro, Esq.